

No:HCJD/C-121

ORDER SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Case No. **Crl.Misc. No. 9787-B/2026**

Muhammad Umair Riaz Vs The State, etc.

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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13.05.2026 Mr. Nadeem Nawaz Khan Vardag, Advocate along with petitioner.
Mr. Ijaz Ahmad Pannu, Deputy District Public Prosecutor.
M/s Muhammad Tariq Bashir Awan and Muhammad Zaheer Hayat Ranjha, Advocates for the complainant.
Mujahid, S.I. with record.

Muhammad Umair Riaz petitioner, seeks pre-arrest bail in case F.I.R. No.2151 dated 13.12.2025 registered u/s 406, 420, 468, 471 P.P.C., registered at Police Station A-Division, District Okara.

2. The prosecution case, in brief, as per crime report is that the petitioner was the husband of the complainant and, during the subsistence of their matrimonial relationship, the complainant’s vehicle bearing registration No. SLK-7800 remained in the use and possession of the petitioner as entrustment, who committed criminal breach of trust and during investigation offences u/s 420, 468, 471 P.P.C., were also added on the blame, he sold out the vehicle vide forged receipt.

3. Arguments heard, record perused.

4. A tentative assessment of the material available on the record reveals that the complainant and the petitioner were admittedly husband and wife, however, differences erupted and complainant/plaintiff herself instituted a family suit on 24.12.2024 for recovery of dowry articles

wherein, in paragraph No.4 of the plaint, the disputed vehicle was specifically described as a dowry article. For facility of reference, paragraph No.4 of the plaint is reproduced as under:-

“That the parents of the plaintiff No.1 has given her cash amount of Rs.800,000/- for purchase of car and the defendant from the said amount purchased the car Hyundai Sentra Registration No.SLK-7800 for the plaintiff No.1 which is registered in the name of plaintiff No.1. whereas the above said vehicle is still in the illegal possession of defendant.”

5. A significant question that arises for consideration is whether the vehicle referred to in the F.I.R. is the same vehicle which forms part of the claim in the family suit. Careful scanning of the record leaves no room for doubt that the vehicle bearing registration No. SLK-7800 mentioned in the family suit is the very same vehicle which constitutes the subject matter of the present criminal case. There is yet another material aspect which creates a substantial factual divergence between the two proceedings, in the aforementioned paragraph of the plaint, the complainant specifically pleaded that her father had provided her an amount of Rs.800,000/- and that the petitioner purchased the vehicle from the said amount on her behalf, on the other hand, the F.I.R. proceeds on the premise that the vehicle had been entrusted to the petitioner as an *amanat*. It is noteworthy that the petitioner, a qualified M.B.B.S. doctor, being defendant in the family suit, has disputed the said claim in his written statement.

6. Besides the disputed vehicle, the complainant also sought recovery of various other dowry articles through the said family suit instituted on 24.12.2024, whereas the present F.I.R. was lodged on 13.12.2025. A careful reading of the F.I.R. reveals that the complainant did not disclose, even remotely, the pendency of the family

proceedings relating to recovery of dowry articles, including the vehicle in question. Such omission assumes significance in the peculiar facts and circumstances of the case.

7. While tentatively examining the matter on legal parlance, it may be observed that “dowry” has been defined in Section 2(b) of the Dowry and Bridal Gifts (Restriction) Act, 1976, as under:-

“Dowry” means any property given before, at or after the marriage either directly or indirectly, to the bride by her parents in connection with the marriage but it does not include property which the bride may inherit under the laws of inheritance and succession applicable to her.”

Further examination of the family law framework reflects that Section 5(1) of the West Pakistan Family Courts Act, 1964, provides as follows:-

“Subject to the provisions of the Muslim Family Laws Ordinance, 1961, and the Conciliation Courts Ordinance, 1961, the Family Courts shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in Part I of the Schedule.”
(underline supplied for emphasis)

A perusal of Part I of the Schedule appended to the West Pakistan Family Courts Act, 1964, shows that “Dowry” has specifically been included at Serial No.8 amongst matters falling within the exclusive jurisdiction of the Family Court.

8. Learned counsel for the complainant has not argued that any application for amendment of the family suit was ever moved or allowed whereby the claim relating to the vehicle was withdrawn or deleted from the said proceedings.

9. Viewed from another angle, the principle of election (of remedies) also comes into play. Ordinarily, where a litigant elects to pursue one of the available

remedies in respect of a particular grievance, and such remedy remains available or is being actively pursued, recourse to another parallel remedy on the same set of facts may not readily be countenanced. *Prima facie*, the record suggests an attempt to impart a criminal colour to a dispute which had already been made the subject matter of family litigation, particularly when the pendency of such proceedings was not disclosed in the F.I.R. Guidance in this regard may be derived from the precedent reported as “Riyazuddin and 02 others Vs. The State and another” (1971 P.Cr.L.J. 1053). It is by now well settled that the mere use of the expression “*amanat*” in an F.I.R. is not by itself sufficient to attract the offence under Section 406 P.P.C. unless the essential ingredients of the said offence are otherwise satisfied. Reference in this regard may be made to the judgment rendered by the Hon’ble Supreme Court of Pakistan in Criminal Petition No.10-L of 2026 titled “Liaqat Ali Vs. The State through PG Punjab and another”, decided on 28.01.2026.

10. It has further been noted that during the course of investigation, offences under Sections 420, 468 and 471 P.P.C. were incorporated on the basis of an alleged receipt pertaining to the sale of the vehicle to a showroom stated to be owned by a close relative of the petitioner. Admittedly, the vehicle in question still stands registered in the name of the complainant. In response to a Court query, the Investigating Officer, present in Court, stated that the alleged receipt has already been taken into possession during investigation. This position *prima facie* suggests that the custodial interrogation of the petitioner is not required for the recovery of the said document.

11. The overall tenor of the record indicates that the dispute appears to have emanated from strained matrimonial relations between the parties. At this stage, the possibility of false implication of the petitioner on

account of the prevailing family dispute and attendant motives cannot altogether be ruled out. The petitioner has already joined the investigation and there is nothing on the record to suggest that he has misused the concession of interim pre-arrest bail or has attempted to obstruct the course of investigation.

12. It has been held by the Hon'ble Supreme Court of Pakistan in "Sajid Hussain alias Joji Vs. The State and another" (PLD 2021 SC 898) and "Khair Muhammad and another Vs. The State through P.G. Punjab and another" (2021 SCMR 130) that while deciding a petition for pre-arrest bail, the Court is not precluded from tentatively examining the merits of the case and that the concept of further inquiry may also be pressed into service at such stage, the law is not static in nature; rather, it evolves through judicial interpretation, which remains an indispensable component of the safe and effective administration of criminal justice.

13. Consequently, this petition is **allowed** and ad-interim pre-arrest bail already granted to the petitioner is **confirmed**, subject to his furnishing fresh bail bonds in the sum of Rs.2,00,000/- (rupees two lac) with one surety in the like amount to the satisfaction of the trial court.

(Tariq Mahmood Bajwa)
Judge

Approve for reporting.

Judge